

Jamshed Ali v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · Writ-C No. 468 of 2020 · **Writ disposed of; petitioner relegated to CGRF under Clause 7.10 with limited stay of coercive action.**

HEADNOTE

A writ seeking certiorari against an electricity order is not entertained where an unrebutted alternative remedy of complaint under Clause 7.10 of the U.P. Electricity Supply Code, 2005 lies before the Consumer Grievance Redressal Forum. The petitioner may approach the Forum within two weeks; the Forum is to decide in accordance with law, with coercive action stayed for six weeks or until decision, whichever is earlier.

FACTUAL SUMMARY

Jamshed Ali invoked the Allahabad High Court's writ jurisdiction seeking certiorari to quash an order dated 15 December 2018 passed by respondent no. 5. Counsel for the Electricity Department submitted that the writ was not maintainable because the petitioner had an alternative statutory remedy of filing a complaint under Clause 7.10 of the U.P. Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum. Counsel for the petitioner did not rebut that contention.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — CGRF complaint

HOLDING

Where, against an impugned electricity order, an alternative statutory remedy of complaint under Clause 7.10 of the U.P. Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum is available and is not rebutted, the High Court will not entertain a writ petition. The petitioner may file a Clause 7.10 complaint within two weeks; the Forum shall consider and decide it in accordance with law by a speaking order after hearing, preferably within four weeks. Coercive action is stayed for six weeks or till the Forum decides, whichever is earlier, and that protection lapses if the Forum is not approached in time. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ not entertained because an unrebutted Clause 7.10 CGRF complaint lay against the impugned electricity order; petitioner directed to that Forum. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 Petitioner permitted to approach the Consumer Grievance Redressal Forum under Clause 7.10 within two weeks, with the Forum to decide in accordance with law and a limited stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ORDER DATED 15.12.2018

No finding on the merits of the impugned order; the writ was declined solely on the alternative Clause 7.10 remedy. ¶ 1